

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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DIEGO MAYORGA,

Plaintiff,

-against-

SUMMONS

THE CITY OF NEW YORK, NYPD POLICE
DETECTIVE KAISER SURRIGA, Tax ID No. 946303,
and NYPD POLICE OFFICERS JOHN DOES NUMBERS
ONE THROUGH TEN,

Index No.:

The Basis of Venue is:
Location of Incident

Defendants.

Plaintiff designates Kings
County as the place of trial.

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To the above named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
November 23, 2021

Yours, etc.

Cary London
Cary London, Esq.
Shulman-Hill, PLLC
Attorneys for Plaintiff
1 State Street Plaza
15th Floor
New York, New York 10004
(212) 203-1090

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

NYPD POLICE DETECTIVE KAISER SURRIGA, TAX ID NO. 946303, Detective
Bureau - Narcotics Division; 1 Police Plaza, New York, NY 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X
DIEGO MAYORGA,

Plaintiff,

INDEX NO.:

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, NYPD POLICE
DETECTIVE KAISER SURRIGA, Tax ID No. 946303,
and NYPD POLICE OFFICERS JOHN DOES NUMBERS
ONE THROUGH TEN,

JURY TRIAL DEMANDED

Defendants.
----- X

Plaintiff DIEGO MAYORGA, by his attorneys, Shulman-Hill PLLC, as and for his
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On February 3, 2021, at approximately 5:00 p.m., plaintiff DIEGO MAYORGA, while lawfully in the vicinity of 15-05 Greene Avenue in Brooklyn, New York, was subject to an unlawful assault and battery and excessive use of force by defendant NYPD police officers. Specifically, defendant officers tased Plaintiff causing him to fall down fourteen (14) stairs, and then tackled him on the ground and jumped on him, causing serious physical injury to his ribs and head. Plaintiff was taken to be treated for his injuries at Wyckoff Hospital before spending 48 hours in police custody. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully assaulted, battered, and subjected Plaintiff to excessive force, in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff DIEGO MAYORGA is a resident of the state of New York.

3. NYPD POLICE DETECTIVE KAISER SURRIGA, TAX ID NO. 946303, is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.

4. NYPD POLICE DETECTIVE KAISER SURRIGA, TAX ID NO. 946303, was at all times relevant herein, assigned to the Narcotics Borough Queens.

5. NYPD POLICE DETECTIVE KAISER SURRIGA, TAX ID NO. 946303, is being sued in his individual and official capacities.

6. NYPD POLICE OFFICERS JOHN DOES NUMBERS ONE THROUGH TEN are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

7. NYPD POLICE OFFICERS JOHN DOES NUMBERS ONE THROUGH TEN are being sued in their individual and official capacities.

8. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

9. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

10. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a timely Notice of Claim against the CITY OF NEW YORK in compliance with the Municipal Law Section 50 and in accordance with New York State law.

11. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claims.

12. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

13. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

14. On February 3, 2021, at approximately 5:00 p.m., Plaintiff was present in the vicinity of 15-05 Greene Avenue in Brooklyn, New York, when the defendant police officers unlawfully assaulted, battered, and subjected Plaintiff to excessive force without legal justification.

15. Plaintiff had been at or in the vicinity of his mother's apartment building when defendant officers began to chase him.

16. As the plaintiff neared a stairwell, unsure by whom he was being chased, the defendant officers deployed a taser and hit the plaintiff, causing him to stumble and fall down approximately fourteen (14) stairs.

17. Approximately five (5) defendant officers jumped on top of the plaintiff at the bottom of the stairwell, and it was at this time that defendant officers began to arrest the plaintiff.

18. After this interaction with defendant officers, the plaintiff was rushed to a nearby hospital to be treated for the injuries inflicted upon him by defendant officers, which included two (2) fractured ribs, a serious back injury, and several contusions and lacerations on his head.

19. After approximately 48 hours in police custody, the plaintiff was arraigned in criminal court and released on his own recognizance.

20. All criminal charges were eventually dismissed against Plaintiff, and he plead guilty to the violation of disorderly conduct in relation to the arrest.

21. Since the relevant incident, the plaintiff still experiences pain and discomfort as a result of these injuries, and has continued to receive professional medical treatment from several different facilities.

22. Plaintiff had to have back surgery on or about October 26, 2021.

23. Some of the police officer defendants observed the violation of Plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably assaulting, battering, and using excessive force against the plaintiff.

24. The unlawful assault, battery, and use of excessive force by the individually named defendants caused the plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Negligence

25. The plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 24 with the same force and effect as if more fully set forth at length herein.

26. Defendants owed a duty of care to plaintiff.

To the extent defendants claim that the injuries to plaintiff by the defendant police officers was unintentionally caused and that the force used by the defendants against him was unintentional, then the defendants breached that duty of care by tasing him, making him fall down the stairs, fracturing his ribs, and causing contusions and lacerations on his head.

27. As a direct and proximate result of such acts, defendants deprived the plaintiff of his rights under the laws of the State of New York.

28. All of the foregoing occurred without any fault or provocation by Plaintiff.

29. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

30. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

31. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SECOND CAUSE OF ACTION

Violation of Plaintiff's Fourth And Fourteenth Amendment Rights

32. The plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 31 with the same force and effect as if more fully set forth at length herein.

33. The use of excessive force by defendants by, amongst other things, by tasing and tackling the plaintiff, constituted objectively unreasonable physical seizures of Plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

34. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

THIRD CAUSE OF ACTION

Assault

35. The plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 34 with the same force and effect as if more fully set forth at length herein.

36. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the plaintiff, that such acts caused apprehension of such contact in the plaintiff.

37. As a direct and proximate result of such acts, defendants deprived the plaintiff of his rights under the laws of the State of New York.

38. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

39. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

40. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Battery

41. The plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 40 with the same force and effect as if more fully set forth at length herein.

42. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully, and maliciously battered plaintiff, when they, in a hostile and/or offensive manner tased Plaintiff and caused him to fall down several stairs, and then tackled him, with the intention of causing harmful and/or offensive bodily contact to the plaintiff and caused such battery.

43. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

44. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

45. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

46. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

47. The plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 46 with the same force and effect as if more fully set forth at length herein.

48. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff, DIEGO MAYORGA. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

49. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

50. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

51. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

52. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

53. The plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 52 with the same force and effect as if more fully set forth at length herein.

54. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train, and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

55. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION

Failure to Intervene

56. The plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 55 with the same force and effect as if more fully set forth at length herein.

57. The defendants that did not physically touch plaintiff, but were present when other officers violated plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

58. Defendants failed to intervene to prevent the unlawful conduct described herein.

59. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subject to other physical constraints.

60. As a direct and proximate result of such acts, defendants deprived the plaintiff of his rights under the laws of the State of New York.

61. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

62. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

63. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

JURY DEMAND

64. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff DIEGO MAYORGA demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
November 23, 2021

By: Cary London
Cary London, Esq.
Shulman-Hill, PLLC
Attorneys for Plaintiff
1 State Street Plaza
15th Floor
New York, New York 10004
(212) 203-1090

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

NYPD POLICE DETECTIVE KAISER SURRIGA, TAX ID NO. 946303, Detective
Bureau - Narcotics Division; 1 Police Plaza, New York, NY 10038

ATTORNEY'S VERIFICATION

CARY LONDON, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **SHULMAN AND HILL PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
November 23, 2021

Cary London

CARY LONDON